

MASTER SERVICES AGREEMENT

This Master Services Agreement ("Agreement") is entered into as of July 11, 2026, by and between Northwind Analytics, Inc., a Delaware corporation ("Provider"), and Hustlers Ventures LLC, a California limited liability company ("Client"). Governing law: State of California; venue: Santa Clara County.

1. Indemnification

Client shall indemnify, defend, and hold harmless Provider, its officers, directors, and employees from and against any and all claims, damages, losses, and expenses, including reasonable attorneys' fees, arising out of or related to Client's use of the Services, without any cap or limitation on the amount or duration of such indemnification obligations.

2. Limitation of Liability

IN NO EVENT SHALL PROVIDER BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES. PROVIDER'S TOTAL LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID BY CLIENT IN THE THREE (3) MONTHS PRECEDING THE CLAIM, EXCEPT THAT CLIENT'S LIABILITY TO PROVIDER SHALL REMAIN UNCAPPED AND UNLIMITED UNDER ALL CIRCUMSTANCES.

3. Intellectual Property Ownership

All work product, deliverables, and derivative works created under this Agreement shall be considered work for hire, and Client hereby assigns all right, title, and interest in such intellectual property to Provider, including any pre-existing IP contributed by Client during the engagement.

4. Automatic Renewal

This Agreement shall automatically renew for successive one (1) year terms unless either party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term. Client acknowledges that failure to provide timely notice will auto-renew the Agreement at Provider's then-current list price, which may increase up to 25% year over year.

5. Termination

Provider may terminate this Agreement for cause immediately upon written notice if Client breaches any material term. Client's right to cancel is limited to termination for cause only, with a thirty (30) day cure period, and Client may not terminate for convenience during the initial term.

6. Payment Terms

Client shall pay all invoices within thirty (30) days of receipt (Net 30). Amounts not paid when due shall accrue a late fee of 1.5% per month. Invoices disputed in good faith must be flagged within five (5) business days or are deemed accepted.

7. Confidentiality

Each party agrees to hold the other party's Confidential Information in strict confidence and not to disclose such proprietary information to any third party. This obligation constitutes a non-disclosure undertaking that survives termination of this Agreement indefinitely.

8. Data Processing

To the extent Provider processes personal data on behalf of Client, Provider shall act as a data processor and Client as data controller in accordance with GDPR and CCPA. Provider shall implement appropriate technical and organizational measures for data processing activities, including cross-border transfers to Provider's affiliates outside the European Economic Area.

9. Warranty

PROVIDER WARRANTS THAT SERVICES WILL BE PERFORMED IN A PROFESSIONAL MANNER. EXCEPT AS EXPRESSLY SET FORTH HEREIN, THE SERVICES ARE PROVIDED ON AN AS-IS BASIS, AND PROVIDER DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS OR IMPLIED. Client represents and warrants that it has the authority to enter into this Agreement.

10. Dispute Resolution

Any dispute arising out of this Agreement shall be resolved through binding arbitration administered under the rules of the American Arbitration Association. The parties waive the right to mediation prior to arbitration. Governing law shall be the State of Delaware, and jurisdiction for any court proceedings ancillary to arbitration shall lie exclusively in Delaware.

11. Force Majeure

Neither party shall be liable for delays caused by force majeure events, including acts of God, natural disasters, or other circumstances beyond the control of the affected party, provided that Client's payment obligations shall not be excused by any force majeure event.

12. Assignment

Client may not assign, transfer, subcontract, or delegate any of its rights or obligations under this Agreement without Provider's prior written consent, which may be withheld in Provider's sole discretion. Provider may freely assign this Agreement to any successor or affiliate.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.